

25STCV12409 25STCV12409

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-06-30

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Case Number: 25STCV12409 Hearing Date: June 30, 2026 Dept: 529

ALVARO

AGUILERA VAZQUEZ VS GENERAL MOTORS, LLC

DEFENDANT GENERAL

MOTORS LLC'S MOTION FOR COMPLIANCE PURSUANT TO CCP §871.26 AND REQUEST FOR
SANCTIONS

Date

of Hearing: June 30, 2026 Trial Date: None set.

Department:

529 Case

No.: 25STCV12409

Moving

Party: Defendant General

Motors, LLC

Responding

Party: Plaintiff Alvaro Aguilera

Vazquez

BACKGROUND

This is a lemon law action. On April 29, 2025,

Plaintiff Alvaro Aguilera Vazquez filed a complaint against Defendant General

Motors, LLC for various violations of the Song-Beverly Consumer Warranty Act as

well as Fraudulent Inducement – Concealment. On October 10, 2025, Plaintiff

filed a First Amended Complaint.

[TENTATIVE]

RULING:

If the plaintiff appeared for their deposition on June 26, the court finds this motion moot and denies sanctions. If not, the motion is granted.

DISCUSSION

Defendant General Motors LLC moves this court for an order for compliance requiring Plaintiff Alvaro Aguilera Vazquez to appear and comply with the initial deposition of the Plaintiff under Code of Civil Procedure section 871.26(c)(1). Defendant GM also moves this court for an order imposing monetary sanctions against Plaintiff's attorneys of record, Strategic Legal Practices, APC, in the sum of \$1,500.00.

"Within 120 days after the filing of the answer or other responsive pleading, all parties have the right to conduct initial depositions, each not to exceed two hours." (CCP 871.26(c).)

Defendant GM argues) on July 28, 2025, GM filed its responsive pleading in the form of its Demurrer to the Complaint. (Rodriguez Decl., ¶3.) Along with its responsive pleading, GM served a meet-and-confer letter to Plaintiff's counsel noting GM was issuing a notice for Plaintiff to appear for deposition. (Rodriguez Decl., ¶ 4, Exh. A.) GM further indicated that if Plaintiff was "unavailable to appear at the depositions as noticed, please contact our office with a date to complete the deposition." (Rodriguez Decl., ¶ 4, Exh. A.) As part of the responsive pleading e-mail, GM also attached a Notice of Deposition, for Plaintiff to appear for deposition on September 4, 2025. (Rodriguez Decl., ¶ 5, Exh. B.) On November 4, 2025, counsel for GM sent a follow-up e-mail to Plaintiff's counsel requesting dates for Plaintiff's availability for deposition. (Rodriguez Decl., ¶6, Exh. C.) On February 2, 2026, Plaintiff's counsel responded and stated Plaintiff was available for deposition on March 26, 2026. (Rodriguez Decl., ¶6, Exh. C.) GM agreed to the date and served Plaintiff with an Amended Notice of Deposition for March 26, 2026. (Rodriguez Decl. ¶¶6-7, Exh. D.) On March 11, 2026, counsel for Plaintiff emailed GM, stating Plaintiff was no longer available for the March 26, 2026 deposition and served objections due to scheduling conflicts on March 20, 2026. (Rodriguez Decl. ¶¶8-9, Exh. E, F.) The statutory deadline to

conduct the deposition of Plaintiff was November 25, 2025. (Rodriguez Decl. ¶10.)

In opposition, Plaintiff argues has been always ready and willing to fulfill its obligations under the underlying statutes. Plaintiff offered three dates for Plaintiff's deposition on June 10, 2026. On June 15, 2026, Defendant accepted the offered date of June 26, 2026 (Tyson Smith Decl. ¶ 3, Exh A.) Plaintiff sent an amended Notice of Deposition on June 15, 2026 (Tyson Smith Decl. ¶ 3, Exh. B). Accordingly, the present motion is moot. Second, even assuming Section 871.26 applied, Plaintiff argues they have demonstrated good cause under the express statutory exception for monetary sanctions. The court notes Plaintiff also argues GM has not directed service at the right address and an inquiry deliberately routed away from the designated channel of service in this matter is an inquiry calculated to produce silence and then to convert that silence into a basis for sanctions.

In Reply, GM notes the deposition is now set for June 26, 2026. If the deposition has occurred at the time of this hearing, the court will find the motion moot. However, if the deposition has not yet occurred, the court will grant the motion and order compliance. Regarding service, the parties are to meet and confer to establish mutually agreeable expectations regarding how communication and services will be conducted going forward. The court expects the parties to work out these details without further court involvement.

Sanctions

Both parties seeks sanctions. The court declines to award sanctions to eith